



CHAPTER lx.

An Act to regulate the capital of the Darien Gold Mining Company Limited and for other purposes. A.D. 1905.

[30th June 1905.]

WHEREAS the Darien Gold Mining Company Limited (hereinafter called "the Company") was incorporated in the year one thousand eight hundred and ninety-one under the Companies Acts 1862 to 1890 as a company limited by shares for the purpose (amongst others) of acquiring gold mines and mining rights in the United States of Colombia or elsewhere and in particular the mines known as the Espiritu Santo the Mina del Rey and others held under concessions from the United States of Colombia and generally to purchase work and turn to account any mines mining rights and undertakings connected therewith and to carry on any metallurgical operations which might seem conducive to any of the Company's objects :

And whereas by clause 5 of the memorandum of association of the Company it was provided as follows:—

“ 5th. The capital of the Company is £100,000 divided
“ into 50,000 ‘A’ shares of £1 each and 50,000 ‘B’
“ shares of £1 each One half of the surplus profits of
“ the Company in each year after making due provision
“ for any reserve fund which may be formed in accordance
“ with the provisions of the Company's articles of associa-
“ tion registered herewith shall be applicable to the
“ payment of a dividend on the capital paid up on the
“ ‘A’ shares The holders of such shares shall also be
“ entitled to one half of any part of such reserve fund

A.D. 1905.

“ as aforesaid or of the income thereof which it may at
“ any time be determined to divide among the members
“ and the right to one half of the surplus assets which
“ in the event of the winding-up of the Company shall
“ remain after paying off the whole of the paid-up capital
“ The other half of the said surplus profits shall belong
“ to the holders of ‘ B ’ shares and shall be applicable to
“ the payment of a dividend on such shares One half
“ of the said reserve fund and of the surplus assets which
“ in the event of a winding-up of the Company shall
“ remain after paying off the whole of the paid-up capital
“ shall also belong to and be divisible among the holders
“ of the ‘ B ’ shares according to their right and interest
“ therein If the capital of the Company be increased
“ any of the shares in the increased capital may be
“ issued with any preferential special or qualified rights
“ or conditions as regards dividends capital voting or
“ otherwise attached thereto” :

And whereas at an extraordinary general meeting of the Company held on the fifth day of April one thousand eight hundred and ninety-three a resolution was in exercise of the powers conferred by the Company’s memorandum and articles of association passed in the following terms (namely) :—

“ That the capital of the Company be increased to £125,000
“ by the creation of 25,000 new shares of £1 each to be
“ called ‘ C ’ shares and that such ‘ C ’ shares or those for
“ the time being issued shall have attached thereto the
“ following rights or conditions (namely) :—

“ (1) A right up to the date of the ordinary general
“ meeting of the Company to be held in the year
“ 1898 to a fixed cumulative preferential dividend
“ at the rate of £20 per cent. per annum on the
“ capital for the time being paid up on such shares
“ respectively and from and after the said general
“ meeting to be held in the year 1898 to a dividend
“ for each year equal to one third of the surplus
“ profits of the Company of that year after providing
“ for the reserve fund and so that such one third
“ of surplus profits shall be distributed rateably
“ amongst the holders of the said ‘ C ’ shares in

“ proportion to the amount of capital for the time A.D. 1905.
“ being paid up thereon respectively : —

“ (2) The right to have such fixed cumulative dividend
“ paid out of the profits of the Company in priority
“ to dividends on the ‘ A ’ shares and ‘ B ’ shares
“ in the capital of the Company and any other
“ shares in its capital which may hereafter be
“ issued :

“ (3) The right to have the capital paid up on the said
“ ‘ C ’ shares payable out of the assets of the
“ Company in a winding-up in priority to any
“ payment thereout in respect of the ‘ A ’ shares
“ and ‘ B ’ shares and any other shares in the
“ capital of the Company which may hereafter be
“ issued and for the purpose of making such pre-
“ ferential return of capital the reserve fund (if
“ any) shall be deemed available in addition to
“ other assets :

“ (4) The right to one third of the surplus assets of the
“ Company which in the event of a winding-up
“ shall remain after paying off the whole of the
“ paid-up capital of the Company and any arrears
“ of dividend due on the said ‘ C ’ shares and so
“ that such one third shall be distributed among
“ the holders of such ‘ C ’ shares in the proportion
“ to the amount paid up thereon respectively :

“ (5) A right collectively to half as many votes as all the
“ other issued shares for the time being confer and
“ so that each holder of ‘ C ’ shares aforesaid shall
“ be entitled to his rateable proportion of the votes
“ to which the issued shares of the class are
“ collectively entitled as aforesaid ”:

And whereas the Company shortly after its incorporation
took over the said mines specified in the said memorandum of
association and commenced to work and have ever since worked
the same and other mines :

And whereas the Company has issued or allocated the said
fifty thousand “ A ” shares of one pound each and has issued the
said fifty thousand “ B ” shares of one pound each and the said
twenty-five thousand “ C ” shares of one pound each making

[Ch. 1x.] *Darien Gold Mining Company Limited* [5 EDW. 7.]
Act, 1905.

A.D. 1905. — together a capital of one hundred and twenty-five thousand pounds divided into one hundred and twenty-five thousand shares of one pound each:

And whereas the said shares with a trifling exception are all fully paid up:

And whereas the division of the Company's capital into several classes of shares has been found inconvenient and detrimental to the interests of the Company and the development of its undertaking:

And whereas it is expedient to re-arrange and unify the capital of the Company and to increase it to some extent and to extinguish all distinction between the several existing classes of shares aforesaid on the terms hereinafter expressed:

And whereas the scheme embodied in this Act has received the approval in writing of the holders of more than three-fourths of the said "C" shares:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the *Darien Gold Mining Company Limited Act 1905*.

Alteration
of memoran-
dum of asso-
ciation.

2. The said recited fifth clause of the memorandum of association of the Company shall as from the passing of this Act be cancelled and there shall be substituted in lieu thereof the following clause (namely):—

5. The capital of the Company is by virtue of the *Darien Gold Mining Company Limited Act 1905* two hundred and fifty thousand pounds divided into two hundred and fifty thousand shares of one pound each whereof fifty thousand were formerly called "A" shares and fifty thousand were formerly called "B" shares and twenty-five thousand were formerly called "C" shares but all distinctions between such shares have been extinguished by the said Act.

3. From and after the passing of this Act the following provisions shall have effect:—

A.D. 1905.

Distinction
between
classes of
shares extin-
guished and
new certifi-
cates to be
issued.

- (1) All distinctions whether in name or otherwise between the "A" shares the "B" shares and the "C" shares aforesaid shall be and the same are hereby extinguished and such shares shall be regarded as shares in the capital aforesaid of two hundred and fifty thousand pounds and every holder of such shares shall forthwith surrender to the Company for cancellation the certificate or certificates representing such shares:
- (2) The Company shall upon the surrender by each holder of his said certificate or certificates issue to him a fresh certificate for the shares comprised in his surrendered certificate or certificates but describing such shares as shares in the said capital of two hundred and fifty thousand pounds:
- (3) In addition the Company shall allot and issue to the persons surrendering the certificates representing the "C" shares aforesaid as compensation for the extinction of their special rights and privileges and in proportion to the "C" shares held by them respectively twenty-five thousand additional shares part of the said two hundred and fifty thousand which additional shares shall be deemed for all purposes to be fully paid up:
- (4) Trustees executors and administrators and all other holders in any representative or fiduciary capacity of "A" "B" and "C" shares aforesaid are hereby expressly authorised to continue to hold the same notwithstanding the alteration therein made by this Act and to accept and hold any additional shares allotted to them as compensation as aforesaid:
- (5) The extinction by this Act of the distinctions between the several classes of shares aforesaid shall be without prejudice to the trusts charges and liabilities affecting such shares respectively and every deed or other instrument and every testamentary or other disposition of or affecting such "A" "B" and "C" shares shall take effect with reference to the whole or a

A.D. 1905.
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proportionate part as the case may be of the shares as altered by this Act:

- (6) The said two hundred and fifty thousand shares shall as regards dividends voting distribution of assets in a winding-up and in all other respects rank *pari passu* in accordance with the provisions of the Company's articles of association but the portion of clause 6 of such articles commencing with the words "subject nevertheless" is by this Act cancelled.

Additional
shares to be
offered at par
to existing
shareholders.

4. Whenever the Company at any time determines to issue any further part of the additional capital hereby created it shall offer the same to the then shareholders in the Company at par until fifty thousand shares shall have been so offered and such shares shall be offered to them in proportion to the then existing shares in the Company held by them and such offer shall as to each shareholder be made by notice in writing specifying the shares to which he is entitled and limiting a time within which the offer if not accepted will be deemed to be declined and after the expiration of such time or on the receipt of an intimation from such shareholder that he declines to accept the shares offered the Company may dispose of the same in such manner as it thinks most beneficial to the Company.

General
saving.

5. Save as in this Act expressly provided nothing in this Act shall prejudice alter or affect the memorandum or articles of association of the Company or shall be deemed to render valid or invalid any act done or proceedings pending by or against the Company before or at the passing of this Act.

Copy of Act
to be for-
warded to
registrar.

6. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty and every penalty shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

7. To every copy of the memorandum and articles of association of the Company supplied after the passing of this Act to any member under the provisions of Section 19 of the Companies Act 1862 there shall be annexed a copy of this Act which for the purposes of that section shall be treated as part of the memorandum and articles of association of the Company.

A.D. 1905.
Copy of Act
to be sup-
plied to mem-
bers.

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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